

SAMPLE NON-DISCLOSURE AGREEMENT (NDA)

Disclaimer: This is a fictional sample agreement for educational and testing purposes only. It is not legal advice.

1. Parties

This Non-Disclosure Agreement ("Agreement") is entered into between ABC Technologies Pvt. Ltd. ("Disclosing Party") and John Doe ("Receiving Party"). The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

2. Purpose

The parties wish to discuss a potential business relationship involving software development and related confidential business information. The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

3. Definition of Confidential Information

Confidential Information includes source code, business plans, financial information, customer lists, trade secrets, product roadmaps, technical documentation, research, prototypes, algorithms, pricing, and any information marked confidential or reasonably understood to be confidential. The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

4. Obligations

The Receiving Party shall keep Confidential Information strictly confidential, use it only for the stated purpose, restrict access to authorized personnel, and apply reasonable security measures. The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

5. Exclusions

Information is not confidential if it is publicly available, independently developed without reference to confidential information, lawfully received from a third party, or required by law to be disclosed. The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

6. Term

This Agreement remains effective for three (3) years. Confidentiality obligations survive termination for five (5) years. The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

7. Return of Materials

Upon request, the Receiving Party shall promptly return or destroy confidential materials and certify destruction if requested. The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

8. Intellectual Property

No ownership or license is granted by disclosure. All intellectual property remains with the Disclosing Party. The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

9. Remedies

Unauthorized disclosure may cause irreparable harm. The Disclosing Party may seek injunctive relief and other remedies available under applicable law. The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

10. Governing Law

This Agreement is governed by the laws of India. Courts in Bengaluru, Karnataka shall have exclusive jurisdiction. The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

11. Miscellaneous

This Agreement constitutes the entire understanding, supersedes prior discussions, and may only be amended in writing signed by both parties. The parties acknowledge that confidentiality is essential for protecting legitimate business interests. The Receiving Party agrees to exercise at least the same degree of care used to protect its own confidential information, but no less than reasonable care.

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Disclosing Party: _____

Receiving Party: _____

Date: _____